State vs) Rahish @ Aadil on 4 July, 2023

IN THE COURT OF MS DEEPALI SHARMA:
ADDITIONAL SESSIONS JUDGE -04: EAST DISTRICT
KARKARDOOMA COURTS: DELHI

CNR No. DLET01-012724-2016
SC No. 2278/2016
FIR No. 283/2016
U/s 307/34 IPC
P.S. Kalaynpuri

In the matter of :

State

versus

1) Rahish @ Aadil,
S/o Noor Mohammad,
R/o 19-20/305, Jhuggi Kalyanpuri,
Delhi.
Presently r/o H.No. 288, 20 Block,
Kalyanpuri, Delhi.

2) Shiva @ Peer,
S/o Raju,
R/o H.No. 96, Gali No. 3,
Chander Vihar, Mandawali, Delhi.
(Proceedings abated vide order dated 16.11.2018.)

3) Sumit @ Chatela,
S/o Ajay Kumar,
R/o H4/462-463,
Trilokpuri, Delhi.

Date of Institution : 26.10.2016
Date of reserving Judgment : 12.06.2023
Date of pronouncement : 04.07.2023

Appearance

For the State : Shri Ajit Kumar Srivastava,
Additional Public Prosecutor.

For accused persons : Shri Sudhakar Singh, Adv., LAC
for accused Rahish @ Aadil.

Shri Trilok Chand, Adv., counsel
for accused Sumit @ Chatela.

JUDGMENT

1) Briefly stated the facts of the present case are that on 02.07.2016 an information was received at PS Kalyanpuri at about 10.27 pm via a PCR call that at 4/51, Trilok Puri, the brother of the caller was stabbed and given blade injury. The said PCR call was assigned to ASI Shiv Murti and DD No. 56A Ex. PW11/A was recorded in this regard. On receipt of DD 56A, ASI Shiv Murti alongwith Const. Hansveer reached the spot i.e. 4/51, Trilok Puri, Delhi, near sewing centre. On reaching there the IO was informed that the injured had been taken to LBS Hospital by his brother. HC Gabbar Singh also arrived at the spot. IO left the spot for LBS Hospital and left HC Gabbar Singh and Const. Hansveer to safeguard the spot. On reaching LBS Hospital, IO collected the MLC of injured, who was found fit for statement. IO recorded the statement of the injured Ravi.

2) In his statement recorded by the IO, injured Ravi stated that he was living with his family and was not doing any work at that time. On that day i.e. 02.07.2016 at about 10.15 pm, he had come out of his house to buy a cold drink after having his food. When he reached the sewing centre, Fourth block, Trilok Puri, near the park, at that time the notorious person of the area Shiva alongwith his associates Rahish, Chikna and Sumit @ Chatela alongwith one another boy whom he could recognize, if shown to him, surrounded him. They all had knives in their Sessions Case No. 2278/2016 Page 2/28 ASJ-04/East/KKD/Delhi hands. They started abusing him. The complainant asked them as to why they were abusing him, at which Shiva said 'Sale aaj tujhe jaan se mar kar illake mai dehshat peda karenge aur hafta vasulegey' i.e. they would kill him and create terror in the area and demand money from people. At that accused Shiva gave a knife blow on his chest, which hit him above his stomach. Accused Chikna and Sumit held the complainant and accused Rahish gave him a knife blow on his thigh. The complainant raised an alarm to save himself at which all the accused persons ran away and the complainant went back to his house. His brother Ankit brought him to the LBS Hospital where his statement was recorded. The complainant could identify the accused persons, if shown to him. The statement of complainant Ravi is Ex. PW2/A.

3) On the basis of the statement of the complainant Ravi Ex. PW2/A, FIR bearing No. 0283/2016 registered on 03.07.2016 u/s 307/34 IPC.

4) IO conducted further investigation and called the crime team at the spot. Photographs of the spot were taken by the Crime Team. IO seized a pair of blue colour rubber slippers found at the spot vide seizure memo Ex.PW4/A. IO also seized T-Shirt of injured Ravi vide seizure memo Ex. PW3/A, which was handed over by his father while stating that he was wearing the said T-shirt at the time of incident. IO also lifted blood from the spot with the help of gauze piece and seized the same vide seizure memo Ex. PW4/B. He also lifted earth control with blood and earth control without blood and kept them in plastic Sessions Case No. 2278/2016 Page 3/28 ASJ-04/East/KKD/Delhi containers and seized them vide seizure memo Ex. PW4/C and Ex. PW4/D respectively. IO went to LBS Hospital and seized two sealed parcels containing clothes of injured Ravi vide seizure memo Ex. PW4/E. The case property was deposited in the Malkhana.

5) On 04.07.2016 SI Desh Raj of PS Kalyanpuri arrested accused Rahish and Shiva in FIR No. 262/2016 in which they disclosed about their involvement in the present case and the IO arrested

them in this case vide arrest memo Ex. PW2/B of accused Rahish and arrest memo Ex. PW2/C of accused Shiva. On 13.07.2016 accused Sumit surrendered himself before the court and he was interrogated and arrested in this case vide arrest memo Ex. PW11/C. His personal search was conducted vide Ex. PW11/D and disclosure statement was recorded vide Ex. PW11/E.

6) IO also prepared site plan of the incident at the instance of injured Ravi vide Ex. PW11/F. IO also recorded disclosure statements of accused Rahish and Shiva vide Ex. PW9/A and Ex. PW9/B respectively. The weapon of offence could not be recovered. The blood sample of injured Ravi was also taken and was seized hy the IO vide seizue memo Ex. PW11/G. The exhibits were sent to FSL for evaluation and analysis. IO obtained the opinion of the doctor regarding nature of injuries on the MLC of injured Ravi and the injuries were opined to be simple in nature. IO recorded the statements of witnesses u/s 161 Cr.P.C. and upon completion of investigation, the charge sheet u/s 307/34 IPC was filed.

Sessions Case No. 2278/2016 Page 4/28 ASJ-04/East/KKD/Delhi

7) After completion of necessary investigation charge sheet was filed u/s 307/34 IPC against the accused persons. On the basis of charge-sheet and the documents submitted with it, the learned Metropolitan Magistrate (East), Karkardooma Courts took cognizance of offences under Section 307/34 IPC and after complying with the provisions contained in Section 207 Cr.P.C, vide order dated 17.10.2016 committed the case to the Court of Session for 26.10.2016.

Charge :

> 8) Vide order dated 20.12.2016 charge was framed against accused Rahish @ Aadil, Shiva @ Peer and Sumit @ Chatela u/s 307/34 IPC.
>
> 9) During trial, accused Shiva @ Peer expired and as such criminal proceedings against him in this case were abated vide order dated 16.11.2018.
>
> Prosecution Evidence :
>
> 10) In order to prove its case, the prosecution examined following witnesses.
>
> (i) PW1 ASI Gabbar Singh, who was posted as Beat Constable at PS Kalyanpuri on 02.07.2016. On that day the duty officer informed him about the incident at 10.25 pm at Block-4, Trilok Puri, near Silai Centre. He reached the spot where ASI Shiv Murti was also present, who directed PW1 to guard the place of occurrence and went to LBS Hospital. The Crime Team Sessions Case No. 2278/2016 Page 5/28 ASJ-04/East/KKD/Delhi also reached there and inspected the spot and ASI Shiv Kumar also came back to the spot.
>
> (ii) PW2 Ravi - injured himself.

(iii) PW3 Bhag Chand, father of victim/injured Ravi.

(iv) PW4 Const. Hansbir, who received the call from DO

and reached the LBS Hospital, where IO ASI Shiv Murti handed over the rukka to him, which he took to the police station and got the FIR registered from the Duty Officer. After registration of the FIR the duty officer gave him copy of FIR and rukka, which he handed over to the IO at the spot. A pair of blue colour slippers (Ex. P-1), blood in gauze piece, blood stained earth and earth control were seized from the spot. T-shirt (Ex. P-2) of injured Ravi was handed over by his father Bhag Chand and was seized by the IO. IO also handed over two pullandas bearing the seal of LBS Hospital. The case property was deposited in the malkhana. PW4 identified the pair of slippers lifted from the spot as Ex. P-1 and a black colour T-shirt as Ex. P2, which was handed over by Bhag Chand to the IO.

(v) PW5 Ankit, younger brother of injured Ravi, who deposed that on 02.07.2016 at about 10-10.15 pm he was present on the floor of his house. Suddenly, his brother Ravi came home in injured condition. He was bleeding and was having a stab injury in his chest and back. Ravi told him that Rahish and Shiva had attacked him with a knife alongwith their associates. PW5 Sessions Case No. 2278/2016 Page 6/28 ASJ-04/East/KKD/Delhi took Ravi to LBS Hospital where he was given medical treatment. Police recorded his statement at the hospital.

vi) PW6 ASI Charan Dutt - Duty Officer, who proved the FIR Ex. PW6/A and endorsement on rukka Ex. PW6/B.

vii) PW7 ASI Dinesh Dutt - Photographer of Crime Team, he proved the photographs of the spot Ex. PW7/A1 to A-5 and the negatives are Ex. PW7/B1 to B5.

viii) PW8 SI Ravikant - Incharge, Crime Team, East District. He proved the scene of crime report Ex PW8/A, which was handed over to the IO.

ix) PW9 Const. Mahesh - part of investigation and arrest of accused Rahish @ Aadil and accused Shiva. He deposed that SI Deshpal arrested accused Rahish and Shiva in FIR No. 262/2016 under Section 307/34 IPC, PS Kalyanpuri. During their interrogation in the said case by SI Deshpal both accused persons confessed about their involvement in the present case bearing FIR No. 283/2016, PS Kalyanpuri. Both accused persons were produced by SI Deshpal before ASI Shiv Murti, IO of the present case, at PS Kalyanpuri. ASI Shiv Murti interrogated both accused Rahish and Shiva in the present case and they were arrested and their disclosure statement was recorded by ASI Shiv Murti. The accused persons pointed out the place of incident vide pointing out memo Ex. PW9/C and PW9/D. Sessions Case No. 2278/2016 Page 7/28 ASJ-04/East/KKD/Delhi

x) PW10 SI Deshpal, IO of FIR bearing No. 262/2016, PS Kalyanpuri and who arrested accused Rahish and Shiva in that case. The accused persons disclosed about their involvement in the present case to IO ASI Deshpal, who produced accused Rahish and Shiva before IO of the present case. He deposed that accused Shiva @ Peer has already expired.

xi) PW11 Retired SI Shiv Murti - IO of the case.

xii) PW12 HC Rajdeep, involved in arrest of accused Sumit, who was produced in the Karkardooma Court. He deposed that ASI Shiv Murti took permission of the court and interrogated accused Sumit and arrested him in this case vide arrest memo Ex. PW11/C. His personal search was conducted vide personal search memo Ex. PW11/D and his disclosure statement was recorded by ASI Shiv Murti vide Ex. PW11/E.

xiii) PW13 ASI Nagender, involved in the arrest of the accused Rahish and Shiva alongwith ASI Shiv Murti and pointing out of the place of incident by accused Rahish and Shiva.

11) During trial, on 14.02.2023, ld. Counsel for the accused persons admitted two documents u/s 294 Cr.P.C. i.e. DD No. 56A dated 02.07.2016 (already Ex. PW11/A) and MLC No. 009486 dated 02.07.2016 of injured Ravi Ex. C-1 as well as the opinion regarding nature of injury given on the said MLC Ex. C-

2 and as such PWs HC Suraj Pal, Dr. Gunjan and Dr. Ranvir were dropped from the list of witnesses. On 13.03.2023, ld. Sessions Case No. 2278/2016 Page 8/28 ASJ-04/East/KKD/Delhi Counsel for the accused persons also admitted FSL (Bio) report and Serological Analysis report Ex. C-3 (colly) and as such PWs Kaushal Kumar, Jr. Forensic/Chemical Examiner (Biology) was dropped from the list of witnesses.

Statement of accused persons :

12) After conclusion of prosecution evidence, statement of the accused persons Rahish @ Aadil and Sumit @ Chatela were recorded under Section 313 Cr.P.C wherein they denied the correctness of all the incriminating circumstances appearing in the evidence against them and stated that they were innocent and were falsely implicated in this case. Accused Rahish @ Aadil opted to lead evidence in his defence, however, vide his statement recorded on 17.05.2023, Ld. Counsel for accused Rahish @ Aadil closed defence evidence without leading any evidence in defence. Accused Sumit @ Chatela did not opt to lead any defence evidence.

13) Accused Rahish @ Aadil further stated that he had been falsely implicated by the IO at the instance of the complainant. The complainant had falsely implicated him in the present case due to previous enmity with him and his friends.

About one month prior to the present case, the friends of the complainant has caused gun shot injury on his chest and also caused multiple stab injuries on the face and thigh of accused Rahish regarding which an FIR was registered at PS Kalyanpuri. They and the complainant had falsely implicated him in the present case to pressurize him to settle that matter.

Sessions Case No. 2278/2016 Page 9/28 ASJ-04/East/KKD/Delhi

14) Accused Sumit @ Chatela further stated that the complainant used to create commotion and abuse him from outside his house after consuming liquor. Accused used to object to his behaviour and as such the complainant used to keep enmity towards him. Even prior to the present incident, the complainant had caused injury on his face with a blade, however, accused did not lodge any complaint against him as the matter was sorted out by the locality persons. Accused still had a cut mark on his face. He never caused any injury to the complainant and rather he himself received injury but he was falsely implicated in the present case.

15) I have heard the arguments of ld. Counsel for the accused persons and Ld. Addl.P.P. for the State and perused the record.

Testimonies of material witnesses :

> 16) Injured Ravi was examined as PW2. He deposed that he was residing at 4/51, Trilokpuri, Delhi for the last 14-15 years and was working as a Driver. He deposed that on 02.07.2016, he had gone to take a cold drink from sewing centre, near park after having his meal. At about 10:15 p.m, accused persons namely Rahish, Sumit @ Chatela and Shiva (since deceased), whom he correctly identified before the court, being resident of his locality, they alongwith one Chikna and another person, whose name he did not know, but could identify him if shown to him, all came there. They all had knives in their hands. They all rebuked him in filthy language and when PW2 asked them as to why they were rebuking him, then all the accused persons alongwith their Sessions Case No. 2278/2016 Page 10/28 ASJ-04/East/KKD/Delhi associates surrounded (gheraoed) him and accused Shiva threatened by saying that "saale aaj tujhe jaan se markar ilaqe me dahshat paida karenge aur hafta wasulenge" and thereafter accused Shiva stabbed PW2 with a knife under his chest and thereafter the other associate namely Chikna and accused Sumit caught hold of PW2 and accused Rahish stabbed PW2 with a knife on his left thigh. PW2 got seriously injured and blood started oozing out from his thigh and abdomen and he rushed to his house and raised an alarm. Thereafter, the accused persons ran away from the spot. PW2 reached his home in injured condition and his brother Ankit took him to LBS Hospital. His father informed the police about the incident and ASI Shiv Murti met PW2 at the hospital and recorded his statement Ex. PW2/A. PW2 further deposed that all the accused persons had attacked him with an intention to kill him.
>
> 17) In his cross-examination by accused Rahish, PW2 deposed that he knew accused Rahish for the past five years as he was residing in Block No. 1, Trilokpuri, alongwith

> his family for last many years. Prior to the incident of 02.07.2016, there was no quarrel between him and accused Rahish. He stated that he raised an alarm at the time of incident but no one came to help as accused persons had a criminal background and the public feared them. Pubic persons had seen the incident but they went away without helping him. The place of incident was a thoroughfare.

The site plan was prepared at his instance. IO had inquired about the incident from 2-3 public persons of the locality but PW2 could not tell their names. Other police officials were also present with the IO at that time at the spot but he could not tell Sessions Case No. 2278/2016 Page 11/28 ASJ-04/East/KKD/Delhi how many police officials were present. He denied the suggestion that the accused persons did not stab him or that prior to the incident, PW2 had quarrelled with the family of accused Rahish and due to enmity, the accused persons had been falsely implicated by PW2 in the present case. He also denied that one Chand, Lali and Tedha were his friends and they had quarrelled with accused Rahish and that the accused persons have been falsely implicated due to the said enmity.

18) In his cross-examination by accused Shiva, PW2 deposed that the distance between his house and the place of incident was about 100 steps. It took him 2-3 seconds to reach home from the spot. He reached hospital within five minutes from his house and the police officials met him at the hospital within 5-10 minutes of reaching there. His statement was recorded in the hospital and he had signed two documents at the hospital. He was discharged from the hospital on the next morning. He also deposed that he used to not consume liquor. Sometimes, he used to consume beer. On the date of incident, he was not under the influence of liquor. He did not remember the date when the site plan was prepared and volunteered that it was prepared one day after the incident. At that time, one police official was present with the IO. He knew accused Shiva for the past 15 years and earlier Shiva used to reside on rent at their house. There was no quarrel between him and accused Shiva prior to the incident. He denied that no incident as alleged had occurred. He denied that the accused persons had been falsely implicated in the present case at the asking of some other Sessions Case No. 2278/2016 Page 12/28 ASJ-04/East/KKD/Delhi persons. PW2 denied that he was under the influence of alcohol at the time of incident.

19) In his cross-examination by accused Sumit, PW2 deposed that he had not given the names of the assailants to the Doctor. He was taken to the hospital on the bike of their neighbour, whose name he did not know. PW2 had gone up the stairs of his house and covered the distance from the spot to his house on foot. Blood had fallen on the stairs, on the clothes of his brother Ankit, on the motorcycle as well as on the road near his house. The IO did not collect the clothes of his brother nor were the same handed over to the police by his brother. He denied that he was under the influence of liquor when he was taken to the hospital. He denied that being under the influence of liquor, he fell on a pointed iron railing and sustained injuries on his person. He denied that the incident as alleged did not take place. PW2 deposed that the accused had made disclosure statement in his presence. He denied that accused did not make any disclosure statement in his presence or that he did not visit the police station on 04.07.2016. He denied that he had signed the arrest documents later at the instance of IO in the police station and for that reason he did not sign the disclosure statement of the accused on 04.07.2016. PW2 denied that accused Sumit was at his house with his family at

Vasundhara Enclave at the time of incident. He denied that he had falsely implicated the accused persons due to previous grudge and enmity.

20) Bhag Chand, father of injured Ravi was examined as PW3 and he deposed that on 03.07.2016, he handed over one Sessions Case No. 2278/2016 Page 13/28 ASJ-04/East/KKD/Delhi black colour T-shirt which was worn by his son Ravi at the time of incident to ASI Shiv Murti, who had come to their house at night. The said T-shirt had two cuts and the same was seized by the IO vide seizure memo Ex. PW3/A. He identified the T-shirt as Ex. P2.

21) Ankit, brother of injured Ravi was examined as PW5 and he deposed that on 02.07.2016 at about 10:00-10:15 p.m., he was present at his house when his brother Ravi came home in injured condition. Ravi was bleeding at that time and he had stab injury on his chest and back. Ravi told him that Rahish and Shiva had attacked him with a knife alongwith their associates. PW5 took Ravi to LBS Hospital where he was medically treated.

22) In his cross-examination, PW5 deposed that he had not seen the incident. The accused persons were known to his brother Ravi as they were living in the same neighbourhood. Accused Sumit was also known to Ravi. He affirmed that he had given the names of the accused persons as told to him by his brother Ravi. He also deposed that Ravi had informed him about the name of accused Sumit, who was also present with other accused persons. He stated that he had told the name of Sumit to the police in his statement recorded under Section 161 Cr.P.C. and he denied the suggestion to the contrary. He stated that he had made a call at 100 number regarding the incident and denied the suggestion that he had not stated about the same in his statement recorded under Section 161 Cr.P.C. as he had not made any call at 100 number. He also denied that his brother Ravi was under the influence of liquor and being in drunken condition he Sessions Case No. 2278/2016 Page 14/28 ASJ-04/East/KKD/Delhi fell on pointed iron railings and sustained injuries on his own. He also denied that before shifting his brother Ravi to the hospital, he did not meet his brother Ravi or that Ravi did not tell him anything against the accused persons. He denied that due to previous enmity between his brother and accused persons, he had falsely deposed against the accused persons.

23) Injured Ravi was medically examined at LBS Hospital at 10:40 p.m., vide MLC No. 9486 of 2016 (Ex. C1). As per the MLC, he was brought by his brother Ankit. The MLC reveals the history of assault. Injured Ravi was found positive for the smell of alcohol. On his examination following injuries were found present:-

(i) sharp incised wound of size 2.5 cm x 1 cm x 1.5 cm over lower left side chest; and

(ii) sharp incised wound 4 cm x 1.5 cm over left thigh outer part lower one third.

The nature of injury was opined to be "simple" in nature vide Ex. C2.

24) The Doctor had also handed over the clothes of injured Ravi i.e. one black colour baniyan (vest) and one black colour pant (lower), to the IO which were seized vide seizure memo Ex. PW4/E.

25) During investigation, the exhibits were sent to FSL for analysis. As per the FSL result Ex. C3, blood was detected on exhibit 1 (one pair of chappal); exhibit 2 (gauze cloth piece of injured Ravi); exhibit 3 (concrete material having blood stained Sessions Case No. 2278/2016 Page 15/28 ASJ-04/East/KKD/Delhi earth); exhibit 6 (one black lower of injured Ravi); exhibit P7 (one black cut/torn sleeveless baniyan of injured Ravi) and exhibit P8 (wet gauze cloth with blood sample of injured Ravi).

26) Blood was not detected on exhibit 4 (concrete material described as earth concrete); exhibit 5 (one cut/torn black T-shirt of injured Ravi).

27) As per the FSL result Ex. C3, the blood found on exhibit 1 (pair of chappal); exhibit 2 (blood stained gauze); exhibit 6 (lower); exhibit P7 (baniyan) and exhibit P8 (blood stained gauze) was of 'B' Group. Ex. P8 was the blood sample of victim Ravi which was of 'B' blood group which was also detected on the pair of chappals seized from the spot, the lower and the vest of injured Ravi which were handed over by the Doctor to the IO at the time of the medical examination of injured Ravi vide MLC Ex. C1.

28) With regard to evidentiary value to be attached to testimony of an injured witness, it would be worthwhile to consider the principles of law laid down by Hon'ble Supreme Court in this regard.

29) As regards the testimony of an injured witness, in Abdul Sayeed v. State of M.P., (2010) 10 SCC 259 the Hon'ble Supreme court made the following observations:

> "Injured witness
>
> 28. The question of the weight to be attached to the evidence of a witness that was himself injured in the course of the occurrence has been extensively discussed by this Court. Where a witness to the occurrence has himself been injured in the incident, Sessions Case No. 2278/2016 Page 16/28 ASJ-04/East/KKD/Delhi the testimony of such a witness is generally considered to be very reliable, as he is a witness that comes with a built-in guarantee of his presence at the scene of the crime and is unlikely to spare his actual assailant(s) in order to falsely implicate someone. "Convincing evidence is required to discredit an injured witness."

30) In Abdul Sayeed v. State of M.P., (supra), the Hon'ble Supreme Court also reiterated the special evidentiary status accorded to the testimony of an injured accused and relying on its earlier judgments and noted the decision in Shivalingappa Kallayanappa v. State of Karnataka [1994 Supp (3) SCC 235 : 1994 SCC (Cri) 1694] wherein it was held that the deposition of the injured witness should be relied upon unless there are strong grounds for rejection of his evidence on the basis of major contradictions and discrepancies, for the reason that his presence on the scene stands established in case it is proved that he suffered the injury during the said incident. The Hon'ble Supreme Court further observed as follows:

"30. The law on the point can be summarised to the effect that the testimony of the injured witness is accorded a special status in law. This is as a consequence of the fact that the injury to the witness is an inbuilt guarantee of his presence at the scene of the crime and because the witness will not want to let his actual assailant go unpunished merely to falsely implicate a third party for the commission of the offence. Thus, the deposition of the injured witness should be relied upon unless there are strong grounds for rejection of his evidence on the basis of major contradictions and discrepancies therein."

31) From the testimony of PW2, it emerges that on the date of incident i.e. 02.07.2016, when Ravi went to take a cold drink from sewing centre near park after having dinner, at about 10:15 p.m., the accused Rahish @ Aadil, Shiva @ Peer (since Sessions Case No. 2278/2016 Page 17/28 ASJ-04/East/KKD/Delhi deceased) and Sumit @ Chatela came there. All had knives in their hands. They abused Ravi, PW2 and when PW2 asked them the reason, they surrounded PW2 and accused Shiva threatened PW2 Ravi that they would kill him and would create terror in the area and extract money from people. Thereafter, accused Shiva stabbed Ravi with a knife under his chest and one Chikna and accused Sumit caught him and accused Rahish stabbed Ravi with a knife on his left thigh. Ravi got seriously injured and rushed to his house. The accused persons ran away from the spot.

32) Accordingly, in light of law discussed hereinabove, it is manifest that the complainant Ravi in his testimony recorded before the Court has detailed the manner in which accused persons had caused injuries to him, after which they ran away from the spot. Despite detailed cross-examination of PW2 Ravi the accused persons were unable to cause any dent in his testimony recorded before the court. PW Ravi remained steadfast and did not detract from his version given in his examination-in-chief. The testimony of PW2 Ravi is also consistent with his statement given to the police Ex. PW2/A. No strong ground has been made out for rejection of his testimony, there being no major contradictions or discrepancies in his testimony.

33) As per the MLC of injured Ravi Ex. C1, two incised wounds were present on his body - one on his lower left side of the chest and another over left thigh. Accordingly, the injuries found on the body of injured Ravi also corroborate the oral testimony of injured Ravi, who deposed that accused Shiva had Sessions Case No. 2278/2016 Page 18/28 ASJ-04/East/KKD/Delhi stabbed him with a knife under his chest and another stab injury was given to him by accused Rahish on his left thigh.

34) The testimony of PW Ravi is also corroborated by the testimony of his brother PW5 Ankit, who deposed that on 02.07.2016 at about 10:00-10:15 p.m., when he was present at his house his brother Ravi came there in injured condition and was bleeding. He had stab injuries and he was told by Ravi that he was attacked by Shiva and Rahish with knives alongwith their associates. He took his brother to the

hospital. In his cross-

examination, he also revealed the name of accused Sumit regarding whom his brother had informed, who was also present alongwith the other accused persons at the time of incident.

35) In view of the aforesaid discussion it is manifest that the testimony of injured Ravi stands corroborated by testimony of his brother as well as the medical and forensic evidence. The FSL result also corroborates the testimony of injured Ravi regarding injury caused to him at sewing centre near the park and the blood group found on the lower and the vest, which were handed over to the IO by the doctor at the time of medical examination, was found to be the blood group of injured Ravi. As per the testimony of injured Ravi, he sustained two stab injuries at the time of incident which are also reflected in his MLC Ex. C1.

36) It is contended by the Ld. Counsel for the accused persons that perusal of the MLC of injured Ravi reveals that he was found positive for alcohol, whereas he has deposed that he Sessions Case No. 2278/2016 Page 19/28 ASJ-04/East/KKD/Delhi had not consumed liquor on the date of incident thereby pointing to false implication. It is urged that on the date of incident, injured Ravi had fallen on pointed iron railings in drunken condition and he sustained injuries because of the same and no injuries were inflicted upon Ravi by the accused persons. It is also argued that as per the FSL result Ex. C3, blood could not be detected on T-shirt Ex. P2 which was allegedly worn by Ravi at the time of incident.

37) No doubt, injured Ravi was found positive for alcohol at the time of incident, however, merely because he had deposed that he did not consume alcohol on the date of incident would not absolve the accused persons of the offence in issue. Injured Ravi had denied the suggestion that he had fallen on pointed iron railings and sustained injuries while he was under

the influence of alcohol at the time of incident. No evidence was led by the accused persons to show that the injured had sustained injuries by falling on some pointed iron railings. On the other hand, the injured Ravi has specifically deposed regarding the manner in which the injuries were caused to him with knives by the accused persons. The MLC of injured Ravi reveals two sharp incised wounds. There is no evidence brought on record to show that the sharp incised wounds could have been caused by any object other than knives as stated by injured Ravi. In these circumstances, the accused persons have failed to prove that injured Ravi sustained injuries by falling on pointed iron railings. The fact that blood was not detected on the T-shirt handed over by PW3 to IO cannot be read in favour of the accused persons as the blood of injured Ravi was detected on the clothes i.e. his vest Sessions Case No. 2278/2016 Page 20/28 ASJ-04/East/KKD/Delhi and lower/pajama handed over by the Doctor to the IO at the time of medical examination of injured Ravi vide his MLC Ex. C1.

38) It is also contended by the ld. counsel for accused persons that though injured Ravi had stated that the disclosure statement of accused persons Shiva and Rahish

were recorded in his presence, however, their disclosure statements do not bear their signatures. In this regard, it is noted that the signatures of injured Ravi are present on the arrest memo of accused Rahish and Shiva. However, absence of signatures of injured Ravi on disclosure statement of accused Rahish and Shiva would not be fatal to the prosecution case as his signatures are not required on the disclosure statement of accused persons.

39) In his statement recorded under Section 313 Cr.P.C., accused Rahish stated that complainant had falsely implicated him in the present case due to previous enmity with him and his friends. About one month prior to the present case, the friends of the complainant has caused gun shot injury on his chest and also caused multiple stab injuries on the face and thigh of accused Rahish regarding which an FIR was registered at PS Kalyanpuri.

The complainant falsely implicated him in the present case to pressurize him to settle that matter.

40) In this regard, it is noteworthy that accused Rahish has not brought any evidence on record to connect the complainant with the alleged FIR regarding injuries caused to him by the friends of the complainant. No evidence regarding the Sessions Case No. 2278/2016 Page 21/28 ASJ-04/East/KKD/Delhi said incident has been brought on record. The complainant Ravi was not cross-examined on that aspect and no suggestion regarding the said alleged incident have been put to the complainant Ravi or any other prosecution witness. Only bald suggestion has been given that one Chand, Lali and Kheda were friends of Ravi and they had quarrelled with accused Rahish, which suggestion was denied by injured Ravi. No further details regarding previous enmity were put to the complainant. Even though, it is asserted that an FIR had been registered regarding the previous incident, however, the said FIR was also not put to the complainant during his examination nor was the same brought on record. In these circumstances the defence sought to be raised by accused Rahish remains unsubstantiated and not proved.

41) In his statement recorded under Section 313 Cr.PC, accused Sumit @ Chatela stated that the complainant used to create commotion and abuse him from outside his house after consuming liquor. Sumit used to object to his behaviour and as such the complainant used to keep enmity towards him. Even prior to the present incident, the complainant had caused injury on his face with a blade, however, accused did not lodge any complaint against him as the matter was sorted out by the locality persons. Accused still had a cut mark on his face. He never caused any injury to the complainant and rather he himself received injury but he was falsely implicated in the present case.

42) In this regard, it is noteworthy that though accused Sumit had raised the defence that he had objected to the Sessions Case No. 2278/2016 Page 22/28 ASJ-04/East/KKD/Delhi behaviour of the complainant on earlier occasion due to which the complainant had enmity towards him, however, no suggestion in that regard was put to the complainant by accused Sumit at the time of his cross-examination before the court. Accused Sumit has also referred to a prior incident when the complainant had caused injury on his face with a blade, however, no cross- examination of the complainant was conducted on that aspect and only a bald suggestion has been put to the

complainant that he had falsely implicated the accused persons due to previous grudge and enmity. The defence sought to be raised at the stage of recording of statement under Section 313 Cr.P.C. has been raised at a belated stage without there being any suggestion or cross-examination of the witnesses on that aspect. Accordingly, accused Sumit has failed to prove the defence sought to be raised by him.

43) Admittedly, the weapon of offence has not been recovered. However, it is settled law that non-recovery of weapon of offence is not fatal to prosecution case.

44) Hence, the examination-in-chief of the complainant PW2 is corroborated by the testimony of his brother PW5. The testimony of injured Ravi is also corroborated by medical evidence on record and his version is also consistent with his initial statement given to the police vide Ex. PW2/A.

45) In this regard it is noteworthy that it is settled law that any deficiencies during investigation shall not accrue to the benefit of the accused. The contradictions and inconsistencies as Sessions Case No. 2278/2016 Page 23/28 ASJ-04/East/KKD/Delhi pointed out by Ld. Counsel for the accused persons are only minor in nature and are not material inconsistencies on the basis of which the prosecution case can be dislodged.

46) The accused persons in the present case have been charged for attempt to murder under section 307 Cr.P.C. read with Section 34 IPC. Section 307 IPC relating to attempt to murder provides as under :

> "Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, and if hurt is caused to any person by such act, the offender shall be liable either to imprisonment for life, or to such punishment as is hereinbefore mentioned."

47) In order to determine if the accused persons are guilty of the offence under section 307/34 IPC, it would be worthwhile to consider the decision of Hon'ble Supreme Court of India in the matter of State of Madhya Pradesh v. Kedar Yadav, 2009 (17) SCC 280, wherein the Hon'ble Supreme Court of Indian enunciated the law in relation to Section 307 IPC and observed that for conviction under section 307 IPC it is sufficient if there is an intention or knowledge coupled with some overt act in execution of such intention / knowledge. It is not necessary that bodily injury capable of causing death should have been inflicted. If the act, irrespective of its result is done with the intention or knowledge and under the circumstances mentioned in the section, the same may result conviction under section 307 IPC and the accused cannot be acquitted merely because the Sessions Case No. 2278/2016 Page 24/28 ASJ-04/East/KKD/Delhi injuries inflicted on the victim were in the nature of a simple hurt.

48) Accordingly in order to prove the offence under section 307 IPC it is essential to prove that there was intention or knowledge coupled with some overt act in execution of such intention / knowledge.

49) Similarly, in Vikash Bhardwaj @ Sonu and Anr. V. State of NCT of Delhi, 2014 (2) JCC 996 : 2014 (15) R.C.R. (Criminal) 63, the Hon'ble Delhi High Court culled out the ingredients of section 307 IPC and observed as follows:

> "21. The essential ingredients required for a conviction under section 307 of the IPC are:
>
> "(i) That the death of a human being was attempted;
>
> (ii) That such death was attempted to be caused by, or in consequence of the act of the accused;
>
> (iii) That such act was done with the intention of causing death; or that it was done with the intention of causing such bodily injury as; (a) the accused knew to be likely to cause death; or (b) was sufficient in the ordinary course of nature to cause death, or that the accused attempted to cause death by doing an act know to him to be so imminently dangerous that it must in all probability cause (a) death, or (b) such bodily injury as is likely to cause death, the accused having no excuse for incurring the risk of causing such death or injury.

22. All the ingredients of the offence must be present before a conviction can be ordered. The injuries sustained, the manner of the assault and the weapons used are all relevant factors. The intention or knowledge which is foremost ingredient of section 307 of the IPC must precede the act attributed to the accused. This intention/knowledge has to be gathered from the circumstances and not necessarily from the ensuing result." (emphasis supplied) Sessions Case No. 2278/2016 Page 25/28 ASJ-04/East/KKD/Delhi

50) Viewed in this light, the testimony of the witnesses has to now be examined to consider whether the conviction can be sustained under section 307 IPC on the basis of the evidence led in the present matter. As discussed herein above, before the conviction can be sustained under section 307 IPC, all the ingredients of section 307 IPC ought to be fulfilled. The injuries sustained, the manner of assault and the weapon used are all relevant factors. The foremost ingredients of section 307 IPC are the intention or knowledge which must precede the act attributed to the accused. The intention / knowledge has to be gathered from the surroundings circumstances and not necessarily from the results that follow, which may result in simple or grievous injury. In order to prove an offence under section 307 IPC essential mens-rea to constitute the said offence has to be proved. Mens-rea can be inferred from the kind of weapon used, nature of injury, place of injury, motive etc. The onus lies on the prosecution that the accused has caused an act with intention/knowledge and under such circumstances that if by that act death was caused, he would be guilty of murder.

51) In the present case the accused persons surrounded the victim Ravi when he had gone to the sewing centre to get cold drink at bout 10:15 p.m. At that time the accused persons inflicted knife injuries upon PW2, Ravi. Two incised wounds were caused to PW2 Ravi as revealed in MLC Ex. C1. The said wounds were caused on lower left side of chest and over left thigh. The nature of injuries

suffered by PW2 Ravi were opined to be simple in nature.

Sessions Case No. 2278/2016 Page 26/28 ASJ-04/East/KKD/Delhi

52) PW2 deposed that the accused persons had knives in their hands at the time of incident and the injuries were caused to him by knives. The alleged weapon of offence was not recovered, however, the fact that it was a sharp weapon is indicated in the fact that the nature of wounds received by PW2 were incised wounds. It is thus proved on record that PW2 Ravi received two incised wounds at the time of incident and the said wounds were inflicted on vital parts of his body i.e. below his chest and on his left thigh.

53) Pertinently, it is also deposed by PW2 Ravi that after surrounding him, accused Shiva had threatened him by saying that they would kill him and create terror in the area and extract money from people. Thereafter, accused Shiva stabbed him with a knife under his chest and thereafter their associate Chikna and accused Sumit caught hold of him and accused Rahish stabbed him with a knife on his left thigh. Accordingly, the intention of the accused persons while inflicting knife injuries upon injured Ravi was to kill him in order to create terror in the area and with that intention they inficted two knife injuries upon complainant Ravi, who was alone at the time of incident. The said injuries were inflicted upon vital parts of his body. The injuries were inflicted intentionally. More than one injury was caused to the complainant.

54) As discussed hereinabove, two incised wounds were inflicted at the time of incident upon PW2 Ravi with a knife below his chest and on his left thigh which are vital parts of the body, thereby indicating that the accused persons in furtherance Sessions Case No. 2278/2016 Page 27/28 ASJ-04/East/KKD/Delhi of their common intention, intended to cause such bodily injury as the accused persons knew to be likely to cause death.

55) Accordingly, the prosecution has been able to bring home the guilt of the accused persons namely Rahish @ Aadil and Sumit @ Chatela under section 307/34 IPC and both the accused persons are accordingly held guilty and thereby convicted of the offence of attempt to murder punishable under section 307/34 IPC.

order
DEEPALI Digitally signed by
DEEPALI SHARMA
SHARMA Date: 2023.07.04
16:35:00 +0530

Announced in the open Court

on this 04th day of July, 2023

(Deepali Sharma)
Additional Sessions Judge-04
East District/KKD Courts/Delhi.

Sessions Case No. 2278/2016 Page 28/28 ASJ-04/East/KKD/Delhi